

2022 M L D 1777

[Lahore]

Before Jawad Hassan, J

MUHAMMAD TAHIR PERVAIZ and others---Petitioners

Versus

PROVINCE OF PUNJAB and others---Respondents

Writ Petition No.393 of 2022, decided on 7th January, 2022.

(a) Cooperative Societies Act (VII of 1925)---

---S.18-B---Cooperative Societies Election Rules, Rr.9(iii) & 9(iv)---Election---"Limine control", doctrine of---Proxy of the candidates/petitioners submitted the nomination papers on their behalf---Nomination papers were rejected by Convenor Election Sub-Committee and their appeals and revisions were dismissed by Deputy Registrar Cooperative Societies and Secretary Cooperative Societies, respectively---Petitioners contended that Election Rules 9(iii) and 9(iv) neither amounted to disqualification of petitioners nor contained any penal provision; that nomination papers did not lack material particulars nor did they violate the mandatory provisions---Held, petitioners were required to submit their nomination papers by themselves but the same were submitted by someone else---Submission of nomination papers through proxy was violative to Election Rules, 9(iii) and 9(iv) of the Society---If a matter was not covered by Election Rules of the Society, the same should be settled under the provisions of Co-operative Societies Act, 1925, Cooperative Societies Rules, 1927, Bye-Laws of the Society---If some issue remained unattended, the Election Sub-Commission was empowered to consider/decide the same, but its decision would be subject to the right of appeal/revision before competent authorities---Petitioners had exhausted their remedies upto the Secretary Cooperative who decided the revision petition observing the violation of Rr.9 (iii) & 9(iv) of the Election Rules---Constitutional petition was dismissed in limine.

Muhammad Hanif Abbasi v. Imran Khan Niazi and others PLD 2018 SC 189 and Asif Saleem v. Chairman BOG University of Lahore and others 2019 PLD Lah. 407 rel.

(b) Administration of justice---

---Principle---When law requires an act to be done in a particular manner and after fulfilment of certain requirements then it must be done in the very manner and after fulfilment of the very conditions as imposed by the law.

Muhammad Hanif Abbasi v. Imran Khan Niazi and others PLD 2018 SC 189; The Collector of Sales Tax, Gujranwala v. Messrs Super Asia Mohammad Din and Sons 2017 SCMR 1427 and Zia ur Rehman v. Syed Ahmed Hussain 2014 SCMR 1015 rel.

Khalid Ishaq, Advocate Supreme Court for Petitioners.

Shahid Iqbal Qureshi for Respondents on watching brief.

ORDER

JAWAD HASSAN, J.----Through the instant Constitutional petition filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the "Constitution"), the Petitioners have challenged order dated 05.01.2022 passed by the Respondent No.2/Secretary Cooperative Societies, Lahore whereby revision petition filed against order dated 30.12.2021 of the Deputy Registrar Cooperative Societies, Lahore was allowed upholding the order dated 21.12.2021 of the Convener Election Sub-Committee.

2. Learned counsel for the Petitioners inter alia contends that impugned orders are against the law and facts; that the impugned orders have been passed in a mechanical way as such the same are the result/tole mis-reading and non-reading of record; that Election Rule Nos.9 (iii) and (iv) neither amounts to disqualification of the Petitioners nor contains any penal provision; that the Respondents have failed to appreciate that the nomination papers of the Petitioners do not lack material particulars and also are not violative to the mandatory procedure but even then their candidature have been rejected.

3. Learned counsel for the Respondents on watching brief appeared and objected to the maintainability of the petition on the ground that the impugned orders have been passed by the Respondents in accordance with law therefore, do not call for interference by this Court.

4. Heard. Record perused.

5. The whole case of the Petitioners is that Election Rule Nos.9 (iii) and (iv) of the Society on the basis of which their candidature has been rejected, does not attract to their case. Available record reveals that after submission of nomination papers by the Petitioners, the Respondent No.6 filed objections on the ground that one Ghulam Kibriya submitted nomination papers on behalf of the Petitioners rather it should be submitted by the Petitioners themselves, through their proposer or seconder or even through authorized person to the Election Sub-Committee which is gross violation of Election Rule Nos.9 (iii) and (iv). The said objections before the Respondent No.4 were accepted vide order dated 21.12.2021 and ultimately nomination paper's of the Petitioners were rejected. The Petitioners assailed aforesaid order by filing an election appeal before the Deputy Registrar Cooperative Societies, Lahore, which was allowed vide order dated 30.12.2021 against which revision petition filed by the Respondent No.6 before the Respondent No.2 under Section 64-A of the Cooperative Societies Act, 1925 (the "Act") was allowed, setting aside order dated 30.12.2021. It is pertinent to mention here that in the impugned order, the Respondent No.2 has observed that nomination papers were submitted by the Petitioners through proxy which was violation of Election Rules 9 (iii) and (iv) of the Society. Before proceedings further, it is imperative to reproduce aforesaid Rule which reads as:

9. RECEIPT OF NOMINATION PAPERS

(iii) Every Nomination paper shall be handed over by the candidate, or his proposer or seconder or authorized person to the Election Sub-Committee. The Election Sub-

Committee shall issue a receipt specifying the date and time of receipt.

(iv) No proxy nomination shall be allowed.

6. The above said Rule clearly demonstrates the procedure for submission of nomination papers by a candidate and receiving the same by the Election Sub-Committee. In the case in hand, it is established from the record that the Petitioners submitted their nomination papers through proxy as observed by the Respondents in the impugned order. It is settled principle of law that when law requires an act to be done in a particular manner and after fulfillment of certain requirements then it must be done in the very manner and after fulfillment of the very conditions as imposed by the law. The Honorable Supreme Court in "Muhammad Hanif Abbasi v. Imran Khan Niazi and others" (PLD 2018 SC 189) laid down the principle as follows:

"It is settled law that where the law requires something to be done in a particular manner, it must be done in that manner. Another important canon of law is that what cannot be done directly cannot be done indirectly".

7. Similar view was earlier expressed by the august Supreme Court in "The Collector of Sales Tax, Gujranwala v. Messrs Super Asia Mohammad Din and Sons" (2017 SCMR 1427), wherein it was observed that "when a statute requires that a thing should be done in a particular manner or form, it has to be done in such manner". In "Zia ur Rehman v. Syed Ahmed Hussain" (2014 SCMR 1015) the Honorable Supreme Court laid down the same principle by holding that "If the law requires a particular thing to be done in a particular manner it has to be done accordingly, otherwise it would not be in compliance with the legislative intent. During the course of arguments, learned counsel for the Petitioners agitated that above stated Election Rule does not contain any penal provision as such impugned orders are liable to be set-aside. The said argument of the Petitioners counsel carries no weight because Clause 37 of the Election Rules of the Society was incorporated to deal with this issue. It is imperative to reproduce aforesaid clause which reads as under:

37. SAVING.

Any matter not covered by these Election Rules shall be settled under the provisions of Co-Operative Societies Act, 1925, Cooperative Societies Rules, 1927, Bye-Laws of society and in case there still remain some issues unsettled, the Election Sub-Committee shall consider and decide the issues subject to the right of Appeal/Revision before the competent authority.

8. The above said clause clearly shows that if a matter is not covered by Election Rules of the Society, the same shall be settled under the provisions of Co-Operative Societies Act, 1925, Cooperative Societies Rules, 1927, Bye-Laws of society and even then, if certain issues remain unattended, the Election Sub-Committee was empowered to consider and decide it which too is subject to the right of Appeal/Revision before the competent authority and in the case in hand, the Petitioners have exhausted their remedies upto the Secretary Cooperative who decided the revision petition with the observation that nomination papers of the Petitioners were submitted through proxy which is a clear violation of Rules 9 (iii) and (iv) of the Election Rules.

9. Both the impugned orders are judicious, well-reasoned and logical having been

passed after taking into consideration every aspect of the case.

10. In view of above, while applying the doctrine of "Limine Control" as developed by this Court in "Asif Saleem v. Chairman BOG University of Lahore and others" (2019 PLD Lahore 407), this petition holds no merit hence the same is hereby dismissed in limine.

ZH/M-112/L

Petition dismissed.